

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 30, 2026

8:30 a.m./1:30 p.m.

17. AMELIA VERDUGO V. ANTHONY RODRIGUEZ

PFL20180504

Respondent filed a Request for Order (RFO) on May 13, 2206, seeking modification of the child custody and parenting plan orders. Petitioner and Minor's Counsel were electronically served on May 13, 2026. Respondent is requesting sole legal and physical custody of the minor. Respondent did not check the box on the face of the FL-300 requesting modification of the current child support orders. However, Respondent did check section #3 within the body of the FL-300 requesting modification of the child support orders. Respondent did not file or serve an Income and Expense Declaration.

Minor's Counsel filed a Responsive Declaration on May 21, 2026, opposing the request. Parties were electronically served the same day. Minor's Counsel asserts Respondent's pleadings lack any specific factual developments since the trial held in January 2026 which would warrant a modification of the current custody orders. Minor's Counsel states the orders issued in January imposed conditions upon Respondent to demonstrate a substantial change in circumstances and compliance with conditions precedent to show the current custody orders should be modified. Additionally, Respondent has only had five visits with the minor since the time of the trial. Minor's Counsel requests the court to deny Respondent's requested changes and maintain the current orders.

Minor's Counsel filed a Supplemental Declaration on July 16, 2026. It was served the same day. After meeting with her client, Minor's Counsel is requesting the court deny Respondent's requests and suspend the current visitation orders.

Petitioner filed a Responsive Declaration on July 17, 2026. It was electronically served the same day. Petitioner opposes Respondent's requested orders. Specifically, she requests any modification of child support be heard by the Child Support Commissioner pursuant to Family Code §4251, as the Department of Child Support Services are a party to the case. As to the custody and parenting plan orders, Petitioner requests the current orders as to custody remain in full force and effect and that Respondent's parenting time be professionally supervised at a frequency of one time per month. Additionally, Petitioner requests the visitation guidelines prohibit Respondent from bringing gifts to the minor at visits. Petitioner is also requesting the orders be made "final" orders. Last, Petitioner requests the court implement a pre-filing order, requiring Respondent to seek leave of court prior to filing further RFOs in this matter.

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 30, 2026

8:30 a.m./1:30 p.m.

The court has read and considered the filings as outlined above. The court denies Respondent's request to modify the current child support orders. First, Respondent failed to serve the Department of Child Support Services, who are a party to the case. Therefore, the request is denied on those grounds. Next, Respondent failed to concurrently file and serve an Income and Expense Declaration. "For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Therefore, the request is denied on those grounds as well.

As to the request to modify the current child custody and parenting plan orders, those requests are denied. Respondent has failed to demonstrate substantial compliance with the court's January 27, 2026, orders. The court cautioned Respondent that filing subsequent RFOs without a clear demonstration of compliance with the court's orders would result in a denial of any requested modification. It is clear to the court Respondent did not heed the court's admonition. Respondent has filed two RFOs since the January 27, 2026 ruling. Neither has been supported by any evidence that Respondent has complied with the court's orders. Rather, Respondent continues to try to relitigate the prior issues. Essentially, each of Respondent's requests have been akin to motions for reconsideration which are wholly unsupported by new facts, new evidence, or new case law. Respondent's requests are denied in their entirety.

Turning next to Minor's Counsel's and Petitioner's requests. The court finds those requests have merit. The court grants Petitioner's request to make the orders "final" orders pursuant to Montenegro v. Diaz, 26 Cal.4th 249 (2001).

The court is reducing Respondent's parenting time to one time per month for two hours to be professionally supervised. Respondent is responsible for the costs of supervision. Further the court is ordering the following conditions for professional supervision: (1) Allow no giving or receiving of gifts, money, or cards; (2) Allow no photographing, audiotaping, or videotaping of the child; (3) Allow no physical contact with the child such as lap sitting, hair combing, stroking, hand holding, hugging, wrestling, tickling, horseplaying, changing diapers, or accompanying the child to the bathroom; and (4) Allow no whispering, passing notes, hand signals, or body signals. (See Cal. Rule Ct. 5.20(m).) While the court had considered fully suspending Respondent's parenting time,

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 30, 2026

8:30 a.m./1:30 p.m.

the court finds with the added provisions as set forth above, professionally supervised parenting time remains appropriate.

The court denies Petitioner's request for pre-filing approval for Respondent's filings. Essentially, Petitioner is requesting the court impose vexatious litigant conditions on Respondent without notice and a hearing on a vexatious litigant finding. Petitioner may file a request for such orders. The court finds Petitioner's request exceeds the scope of the RFO therefore, the court declines to rule on it in accordance with California Rule of Court rule 5.92(g)(2), "unrelated relief must be sought by scheduling a separate hearing using *Request for Order* (form FL-300) ..." Cal. Rule Ct. § 5.92(g)(2). Nevertheless, Respondent is admonished that should he continue "...attempts to relitigate, in propria persona, either (1) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined;" or "repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay" he may be deemed a vexatious litigant. Cal. Civ. Pro. § 391(b)(2) & (b)(3). A finding of as few as three motions on the same issue has been upheld as grounds for a vexatious litigant ruling. Goodrich v. Sierra Vista Reg'l Med. Ctr., 246 Cal. App. 4th 1260 (2016).

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #17: THE COURT DENIES RESPONDENT'S REQUEST TO MODIFY THE CURRENT CHILD SUPPORT ORDERS. FIRST, RESPONDENT FAILED TO SERVE THE DEPARTMENT OF CHILD SUPPORT SERVICES, WHO ARE A PARTY TO THE CASE. THEREFORE, THE REQUEST IS DENIED ON THOSE GROUNDS. NEXT, RESPONDENT FAILED TO CONCURRENTLY FILE AND SERVE AN INCOME AND EXPENSE DECLARATION. "FOR ALL HEARINGS INVOLVING CHILD, SPOUSAL, OR DOMESTIC PARTNER SUPPORT, BOTH PARTIES MUST COMPLETE, FILE, AND SERVE A CURRENT INCOME AND EXPENSE DECLARATION." CAL. RULE CT. 5.260(1); SEE ALSO CAL. FAM. CODE §2100. THE PARTY REQUESTING SUPPORT SHALL FILE AND SERVE THEIR INCOME AND EXPENSE DECLARATION WITH THE INITIAL MOVING PAPERS. EL

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 30, 2026

8:30 a.m./1:30 p.m.

DORADO SUP. CT. RULE 8.03.01. THEREFORE, THE REQUEST IS DENIED ON THOSE GROUNDS AS WELL.

AS TO THE REQUEST TO MODIFY THE CURRENT CHILD CUSTODY AND PARENTING PLAN ORDERS, THOSE REQUESTS ARE DENIED. RESPONDENT HAS FAILED TO DEMONSTRATE SUBSTANTIAL COMPLIANCE WITH THE COURT'S JANUARY 27, 2026, ORDERS. THE COURT CAUTIONED RESPONDENT THAT FILING SUBSEQUENT RFOS WITHOUT A CLEAR DEMONSTRATION OF COMPLIANCE WITH THE COURT'S ORDERS WOULD RESULT IN A DENIAL OF ANY REQUESTED MODIFICATION. IT IS CLEAR TO THE COURT RESPONDENT DID NOT HEED THE COURT'S ADMONITION. RESPONDENT HAS FILED TWO RFOS SINCE THE JANUARY 27, 2026 RULING. NEITHER HAS BEEN SUPPORTED BY ANY EVIDENCE THAT RESPONDENT HAS COMPLIED WITH THE COURT'S ORDERS. RATHER, RESPONDENT CONTINUES TO TRY TO RELITIGATE THE PRIOR ISSUES. ESSENTIALLY, EACH OF RESPONDENT'S REQUESTS HAVE BEEN AKIN TO MOTIONS FOR RECONSIDERATION WHICH ARE WHOLLY UNSUPPORTED BY NEW FACTS, NEW EVIDENCE, OR NEW CASE LAW. RESPONDENT'S REQUESTS ARE DENIED IN THEIR ENTIRETY.

TURNING NEXT TO MINOR'S COUNSEL'S AND PETITIONER'S REQUESTS. THE COURT FINDS THOSE REQUESTS HAVE MERIT. THE COURT GRANTS PETITIONER'S REQUEST TO MAKE THE ORDERS "FINAL" ORDERS PURSUANT TO MONTENEGRO V. DIAZ, 26 CAL.4TH 249 (2001).

THE COURT IS REDUCING RESPONDENT'S PARENTING TIME TO ONE TIME PER MONTH FOR TWO HOURS TO BE PROFESSIONALLY SUPERVISED. RESPONDENT IS RESPONSIBLE FOR THE COSTS OF SUPERVISION. FURTHER THE COURT IS ORDERING THE FOLLOWING CONDITIONS FOR PROFESSIONAL SUPERVISION: (1) ALLOW NO GIVING OR RECEIVING OF GIFTS, MONEY, OR CARDS; (2) ALLOW NO PHOTOGRAPHING, AUDIOTAPING, OR VIDEOTAPING OF THE CHILD; (3) ALLOW NO PHYSICAL CONTACT WITH THE CHILD SUCH AS LAP SITTING, HAIR COMBING, STROKING, HAND HOLDING, HUGGING, WRESTLING, TICKLING, HORSEPLAYING, CHANGING DIAPERS, OR ACCOMPANYING THE CHILD TO THE BATHROOM; AND (4) ALLOW NO WHISPERING, PASSING NOTES, HAND SIGNALS, OR BODY SIGNALS. (SEE CAL. RULE CT. 5.20(M).) WHILE THE COURT HAD CONSIDERED FULLY SUSPENDING RESPONDENT'S PARENTING TIME, THE COURT FINDS WITH THE ADDED PROVISIONS AS SET FORTH ABOVE, PROFESSIONALLY SUPERVISED PARENTING TIME REMAINS APPROPRIATE.

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 30, 2026

8:30 a.m./1:30 p.m.

THE COURT DENIES PETITIONER'S REQUEST FOR PRE-FILING APPROVAL FOR RESPONDENT'S FILINGS. ESSENTIALLY, PETITIONER IS REQUESTING THE COURT IMPOSE VEXATIOUS LITIGANT CONDITIONS ON RESPONDENT WITHOUT NOTICE AND A HEARING ON A VEXATIOUS LITIGANT FINDING. PETITIONER MAY FILE A REQUEST FOR SUCH ORDERS. THE COURT FINDS PETITIONER'S REQUEST EXCEEDS THE SCOPE OF THE RFO THEREFORE, THE COURT DECLINES TO RULE ON IT IN ACCORDANCE WITH CALIFORNIA RULE OF COURT RULE 5.92(G)(2), "UNRELATED RELIEF MUST BE SOUGHT BY SCHEDULING A SEPARATE HEARING USING *REQUEST FOR ORDER* (FORM FL-300) ..." CAL. RULE CT. § 5.92(G)(2). NEVERTHELESS, RESPONDENT IS ADMONISHED THAT SHOULD HE CONTINUE "...ATTEMPTS TO RELITIGATE, IN PROPRIA PERSONA, EITHER (1) THE VALIDITY OF THE DETERMINATION AGAINST THE SAME DEFENDANT OR DEFENDANTS AS TO WHOM THE LITIGATION WAS FINALLY DETERMINED OR (II) THE CAUSE OF ACTION, CLAIM, CONTROVERSY, OR ANY OF THE ISSUES OF FACT OR LAW, DETERMINED OR CONCLUDED BY THE FINAL DETERMINATION AGAINST THE SAME DEFENDANT OR DEFENDANTS AS TO WHOM THE LITIGATION WAS FINALLY DETERMINED;" OR "REPEATEDLY FILES UNMERITORIOUS MOTIONS, PLEADINGS, OR OTHER PAPERS, CONDUCTS UNNECESSARY DISCOVERY, OR ENGAGES IN OTHER TACTICS THAT ARE FRIVOLOUS OR SOLELY INTENDED TO CAUSE UNNECESSARY DELAY" HE MAY BE DEEMED A VEXATIOUS LITIGANT. CAL. CIV. PRO. § 391(B)(2) & (B)(3). A FINDING OF AS FEW AS THREE MOTIONS ON THE SAME ISSUE HAS BEEN UPHELD AS GROUNDS FOR A VEXATIOUS LITIGANT RULING. GOODRICH V. SIERRA VISTA REG'L MED. CTR., 246 CAL. APP. 4TH 1260 (2016).

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 30, 2026

8:30 a.m./1:30 p.m.

**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**